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LINE 2

22-CIV-05082 JUANA MARGARITA OLGUIN ACOSTA VS. COSTCO WHOLESALE CORPORATION, ET AL.

JUANA MARGARITA OLGUIN ACOSTA
COSTCO WHOLESALE CORPORATION

BRIAN GORDON BEECHER
SHARON C. COLLIER

PLAINTIFF'S MOTION TO COMPEL THE DEPOSITION OF DEFENDANT COSTCO WHOLESALE CORPORATION'S
EMPLOYEE JULIE MCKNIGHTS

TENTATIVE RULING:

Plaintiff Juana Margarita Olguin Acosta's Motion to Compel the Deposition of Defendant Costco Wholesale Corporation's Employee: Julie McKnight and Request for Monetary Sanctions is DENIED, as follows:

Service of Deposition Notice

Service of a deposition notice is effective to compel any deponent who is "a party to the action or an officer, director, managing agent, or employee of a party" to attend, testify, and produce documents. (Code Civ. Proc., § 2025.280.) Unlike third-party witnesses, who require service of a deposition subpoena under Code of Civil Procedure section 2020.010, employees of a corporate party defendant need only be served with proper notice directed to the corporation's attorney of record. (Code Civ. Proc., § 2025.280.) However, a witness "is not obliged to attend as a witness before any court, judge, justice or any other officer, unless the witness is a resident within the state at the time of service." (*Id.*, § 1989.) Service of a deposition notice is effective to compel attendance of an out-of-state employee only if the notice specifies a location within 75 miles of the deponent's residence or a business office. (*Id.*, § 2020.010 subd. (b).) In this case, there is no dispute that Linda McKnight is a resident of Washington state. (O'Brienf-Koari Decl., ¶ 2; Reply Brief at p. 2.)

Even when a deposition is conducted by videoconference, the underlying location requirements of Code of Civil Procedure sections 2025.250 and 1989 remain in effect because section 2025.310 subd. (d) explicitly preserves all other deposition requirements when remote attendance is used, stating that remote participation "does not waive any other provision of this title, including, but not limited to, provisions regarding the time, place, or manner in which a deposition shall be conducted". (Code Civ. Proc., § 2025.310 subd. (d).) A party who receives a deposition notice that does not comply with the location requirements must promptly serve a written objection specifying the error at least three calendar days before the scheduled deposition, or the objection is waived. (*Id.*, § 2025.410 subd.(a); *Parker v. Wolters Kluwer United States, Inc.* (2007) 149 Cal.App.4th 285.)

Here, Plaintiff seeks to compel the deposition of Defendant Costco Wholesale Corporation's employee, McKnight. Plaintiff served a deposition notice on April 16, 2026 for an April 28, 2026

deposition date for McKnight. (Chou-Chan Decl., ¶2.) The notice states that the location is “VIA ZOOM [with a Zoom link provided to all participants in advance.” (*Id.*, at Exh. 1.) Defendant Costco served objections on April 24, 2026, which included an objection that “the Notice of Deposition is procedurally defective in that i[t] fails to comply with C.C.P. §§ 1989 and 2026.010.” (*Id.*, at ¶3, Exh. 2.) Plaintiff contends that the objections were untimely, but it is not contested that they were served on April 24, 2026, more than three calendars days before the noticed date for the deposition, so Defendant’s objections are timely pursuant to Code of Civil Procedure section 2025.410 subdivision (a).

Plaintiff’s deposition notice does not specify a location within 75 miles of the deponent’s residence or a business office as required by Code of Civil Procedure. section 2020.010, subdivision (b). (See (Chou-Chan Decl., ¶2, Exh. 1.) Instead, no location is specified, with the notice instead indicating only the manner of the deposition, noting that it is to be taken via Zoom. (*Id.*) Because McKnight lives in Washington State, under Code of Code of Civil Procedure section 1989, Plaintiff could not compel McKnight to appear because she lives in Washington and the fact that the deposition was to be by Zoom does not change the analysis. Defendant timely objected to the deficiency in the deposition notice. The notice therefore is not effective to compel attendance at the deposition. (Code Civ. Proc., §§ 1989, 2020.010, subd. (b); *Toyota Motor Corp. v. Superior Court* (2011) 197 Cal.App.4th 1107.)

The Motion is accordingly DENIED, and the Court declines to reach the substantive issues raised therein.

Defendant’s request for monetary sanctions is GRANTED. The court awards Defendant \$1,340 as discovery sanctions based upon four hours at \$335 per hour as a reasonable rate.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for Defendant shall prepare a written order consistent with the Court’s ruling for the Court’s signature, pursuant to California Rules of Court, Rule 3.1312, and provide written notice of the ruling to all parties who have appeared in the action, as required by law and the California Rules of Court.

2:00 PM

LINE 3

23-CIV-01887

CHARLES KING VS. ERIC STUART, ET AL.

CHARLES KING
ERIC STUART

PRO SE

PLAINTIFF'S MOTION FOR RELIEF FROM DEEMED ADMISSION (CCP § 2033.300)

TENTATIVE RULING:

Plaintiff Charles King brings a motion for relief from deemed admissions. He filed this motion on May 5, 2026. The court DENIES his motion.

On May 19, 2026, this court heard defendants' motion to deem facts admitted and recognizing that plaintiff had filed this motion provided plaintiff with an opportunity to have the motion to deem facts admitted denied and make this motion moot. The tentative ruling issued on May 18, 2026 provided:

While plaintiff has not filed any opposition to any of the three motions, on May 5, 2026, he filed a motion for relief from deemed admissions, which is set for hearing on June 28, 2026 (plaintiff had scheduled the hearing for May 19, 2026, but the date was changed by the clerk's office due to calendar unavailability on May 19, 2026). In the proposed order, plaintiff attaches signed and verified responses to the request for admissions, which responses contain no objections. (Proposed Order Granting Plaintiff's Motion for Relief From Deemed Admissions filed May 6, 2026.) Plaintiff's motion has in the table of contents a reference to a proof of service on page 11, but no proof of service is included and there are only six pages in his motion. The proposed order does not have a proof of service and there is no stand alone proof of service in the file.

Pursuant to Code of Civil Procedure section 2033.280, subdivision (c), if a party prior to the hearing serves a response in substantial compliance with Code of Civil Procedure section 2033.220, the court does not deem the requests admitted. (*St. Mary v. Superior Court* (2014) 223 Cal.App.4th 762, 778.) Here, the responses are in substantial compliance: they have no objections, deny the requests, and are verified. However, there is no evidence that they have been served, another requirement. Thus, unless plaintiff demonstrates prior to the hearing by email to Department 4 and defendants that the responses have been served on defendants and he properly contests the tentative ruling and appears at the hearing (Zoom appearances are allowed), the motion is denied and the facts are deemed admitted. If plaintiff shows proof of service on defendants prior to the hearing, the motion to deem the facts admitted is denied. If he fails to follow this procedure, the motion is granted
